



महाराष्ट्र MAHARASHTRA

● 2025 ●

DY 654937

प्रधान मुद्रांक कार्यालय, मुंबई
प.मु.वि.क्र. ८००००२०
15 JUL 2025
सक्षम अधिकारी

श्रीमती सायली कोळी

खेती - २ Annexure - II

23 JUL 2025	AGREEMENT Horizon Industrial Parks Private Limited 5th Floor, 15018, Chhatrapati Shivaji Maharaj, Senapati Bapat Marg, Prabhadevi, Mumbai, Maharashtra - 400013.
23 JUL 2025	B REP ASY A 214 (cm. Mup) पुनम जगन्नाथ मयकवाड



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Annexure - II
AGREEMENT

23 JUL 2025

Horizon Industrial Parks Private Limited
 Tower 1C, 15th Floor, 1501B, Senapati Bapat Marg, Prabhadevi, Mumbai,
 Maharashtra - 400013.

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पुनम जयनाथ गायकवाड

23 JUL 2025



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EXHIBIT - II
AGREEMENT

23 JUL 2025

23 JUL 2025

AGREEMENT

Horizon Industrial Park Private Limited
Tower - C, 45th Floor, 15013, Chhatrapati Shivaji Maharaj
Kempali Bapat Marg, Pashachi, Mumbai
Maharashtra - 400043.

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पुनः जयन्ताथ गणकवाड

DEED OF ADHERENCE

This deed of adherence (this “**Deed**”) is executed on this 1st day of August, 2025 by and amongst:

1. **BREP ASIA II INDIAN HOLDING CO I (NQ) PTE. LTD**, a company incorporated under the laws of Singapore and having its registered office at 3 Church Street #30-01 Samsung Hub, Singapore – 049483 (hereinafter referred to as “**Seller**”, which expression shall unless repugnant to the context or meaning thereof, include its successors and permitted assigns) (hereinafter referred to as (“**Investor**”), which expression shall include its successors and permitted assigns) of the **FIRST PART**;
2. **HORIZON INDUSTRIAL PARKS LIMITED**, a company incorporated and existing under the Laws of India having its registered office at One World Centre, Unit No 1501B, Tower 1, 841, Jupiter Textile Mills, Senapati Bapat Marg, Mumbai City, Mumbai, Maharashtra, India – 400013 (hereinafter referred to as the “**Transferee**”, which expression shall include its successors and permitted assigns) of the **SECOND PART**;
3. **JUTURNA DEVELOPERS PRIVATE LIMITED**, a company incorporated under the (Indian) Companies Act 2013, with corporate identification number: U45200MH2007PTC172098 and having its registered office at 1st Floor, Olympia Building, Central Avenue, Hiranandani Gardens, Powai, Mumbai, Mumbai City - 400076, Maharashtra (hereinafter referred to as the “**Project Company 1**”, which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its successors and permitted assigns) of the **THIRD PART**.
4. **TALEGAON INDUSTRIAL PARKS PRIVATE LIMITED**, a company incorporated under the (Indian) Companies Act 2013, with corporate identification number: U45100MH2009PTC196008 and having its registered office at 1st Floor, Olympia Building, Central Avenue, Hiranandani Gardens, Powai, Mumbai City, Mumbai, Maharashtra, India, 400076 (hereinafter referred to as the “**Project Company 2**”, which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its successors and permitted assigns) of the **FOURTH PART**.

AND

5. **VOLUMNUS DEVELOPERS PRIVATE LIMITED**, a company incorporated under the (Indian) Companies Act 2013, with corporate identification number: U45400MH2007PTC175671 and having its registered office at 1st Floor, Olympia Building, Central Avenue, Hiranandani Gardens, Powai, Mumbai City, Mumbai, Maharashtra, India, 400076 (hereinafter referred to as the “**Project Company 3**”, which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its successors and permitted assigns) of the **FIFTH PART**.

Project Company 1, Project Company 2 and Project Company 3 shall hereinafter collectively be referred to as the **Project Companies**.

WHEREAS

- A. The Investor, the Project Companies and the Developer (collectively, the “**Original Parties**”) have entered into a Shareholders’ Agreement dated December 27, 2024 (“**Agreement**”).
- B. In accordance with the terms of the Agreement, the Transferor (as defined below) is permitted to Transfer its Securities to the Transferee, subject to the Transferee executing a deed of adherence to the Agreement.

- C. The Transferee (as the case may be) is a transferee of the Investor (“**Transferor**”) to whom the Transferor has Transferred Securities and/or assigned rights under the Agreement and is now executing this Deed as required under the Agreement.

NOW, THEREFORE, THIS DEED WITNESSETH AS FOLLOWS:

1. Consent to the terms of the Agreement

- 1.1. The Transferee covenants, undertakes and agrees with the Original Parties that by its execution of this Deed it shall become a party to the Agreement and that it shall be bound by all the rights, duties and obligations of any nature whatsoever cast upon the Transferor under the Agreement and shall assume, keep, observe and perform, duly and punctually, all the terms, covenants, undertakings, agreements, provisions and conditions in the Agreement.
- 1.2. The Transferee hereby confirms to the Transferor and the other Original Parties that it has received a copy of the Agreement and that all provisions relating to its rights, duties and obligations of any nature whatsoever under the Agreement are incorporated by reference herein and deemed to be part of this Deed to the same extent as if such provisions had been set forth in their entirety herein.
- 1.3. This Deed is made for the benefit of: (a) the Original Parties; and (b) any other Person or Persons who after the date of the Agreement (and whether or not prior to or after the date of this Deed) adheres to the Agreement.
- 1.4. The contact details of the Transferee for the purposes of the Agreement are as follows:

Address: Tower 1, 15th Floor, 1501 B, One World Centre, Senapati Bapat Marg, Prabhadevi, Delisle Road, Mumbai- 400013, Maharashtra, India.

E-mail: Compliance@hiparks.com

Attention: Kunal H Shah

2. Representations and Warranties

- 1.1. The Transferee represents, warrants and covenants to the Original Parties that:
- (i) it is duly organised and validly existing under the Applicable Laws of its jurisdiction of formation;
 - (ii) it has the power and authority to execute, deliver and perform the obligations set out in this Deed, and the execution, delivery and performance by it of this Deed will not:
 - (a) violate, conflict with, result in a breach of the terms, conditions or provisions of, result in the creation of any Encumbrances or constitute a default, an event of default (or event that, with the giving of notice or lapse of time or both, would constitute an event of default) or an event creating rights of acceleration, modification, termination or cancellation or a loss of rights under any or all of the following:
 - (I) its Charter Documents;
 - (II) any Contract to which it is a party;
 - (III) any Consent, Governmental Approval or Order to which it is a party or by which it is bound; and/or
 - (IV) Applicable Laws of the jurisdiction of incorporation of the Transferee; and

- (b) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy act or law applicable to it for the protection of debtors or creditors; and
- (iii) this Deed, when executed, shall be duly and validly executed by it and shall constitute legal, valid and binding obligations, enforceable against it in accordance with the terms of this Deed.

3. Governing Law and Jurisdiction

This Deed shall be governed in all respects by the Laws of India (without reference to its conflict of Laws provisions), and subject to the non-exclusive jurisdiction of courts at Mumbai, Maharashtra, India.

4. Definitions

Terms used but not defined herein shall have the meanings assigned to them in the Agreement.

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For BREP ASIA II INDIAN HOLDING CO I (NQ) PTE. LTD



Authorized Signatory

Name: Vikram Garg

Signature page to the deed of adherence executed by and amongst Horizon Industrial Parks Limited, BREP Asia II Indian Holding Co I (NQ) Pte Ltd., Juturna Developers Private Limited, Talegaon Industrial Parks Private Limited and Volumnus Developers Private Limited

For HORIZON INDUSTRIAL PARKS LIMITED



Authorized Signatory

Name: **SUJOY KUMAR DAS**

For JUTURNA DEVELOPERS PRIVATE LIMITED

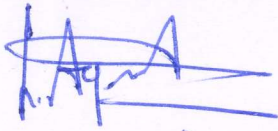


Authorized Signatory

Name: Lokesh Agrawal

Signature page to the deed of adherence executed by and amongst Horizon Industrial Parks Limited, BREP Asia II Indian Holding Co I (NQ) Pte Ltd., Juturna Developers Private Limited, Talegaon Industrial Parks Private Limited and Volumnus Developers Private Limited

For VOLUMNUS DEVELOPERS PRIVATE LIMITED

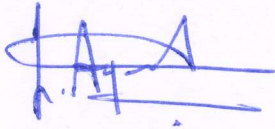


Authorized Signatory

Name: Lokesh Agrawal

Signature page to the deed of adherence executed by and amongst Horizon Industrial Parks Limited, BREP Asia II Indian Holding Co I (NQ) Pte Ltd., Juturna Developers Private Limited, Talegaon Industrial Parks Private Limited and Volumnus Developers Private Limited

For TALEGAON INDUSTRIAL PARKS PRIVATE LIMITED



Authorized Signatory

Name: Lokesh Agrawal

Signature page to the deed of adherence executed by and amongst Horizon Industrial Parks Limited, BREP Asia II Indian Holding Co I (NQ) Pte Ltd., Juturna Developers Private Limited, Talegaon Industrial Parks Private Limited and Volumnus Developers Private Limited